

Avenant n°2 au contrat DSP-VM-2021 — GER threshold and heavy-component rule

Amendment	DSP-VM-2021-AV2
Signed	5 March 2024
Effective	1 April 2024
Received by the Operator	11 March 2024

Article 1 — GER threshold

The per-intervention GER threshold in Annex 9 is raised from €3,000 HT to €5,000 HT.

Article 2 — Article 34.4 is replaced by the following

34.4.1 Where a vehicle remains in service after its contractual replacement date (Annex 7) because its replacement has not been delivered for reasons not attributable to the Operator, the cost of repairing or replacing a heavy component (engine, gearbox, traction battery) that fails after that date and exceeds €5,000 HT is borne by the Authority.

34.4.2 The Operator notifies the Authority in writing within 30 calendar days of the failure, with the failure report, the diagnosis and a quotation. Failing notice within this period, the cost remains with the Operator.

34.4.3 The Authority's liability is capped at €35,000 HT per vehicle per event.

34.4.4 This article does not apply where the failure results from a default in the Operator's maintenance obligations under Article 34.1, including a planned maintenance task not carried out at its due point.

34.4.5 The Authority confirms acceptance of the charge in writing before the Operator orders the repair, except where the vehicle is required for service continuity, in which case the Operator may proceed and the charge remains subject to confirmation.

Signed 5 March 2024